PRIVATE PROCESS SERVER | GLENDALE

FEDERAL SERVICE OF PROCESS | PREPARED OCTOBER 17, 2026

U.S. DISTRICT COURT | EASTERN DISTRICT OF CALIFORNIA

Case No. 2:26-cv-03314-DJC-AC

Defendant: ATT Mobility Services LLC
Registered agent: C T Corporation System
Place of service: 330 N Brand Blvd, Glendale, CA 91203
Service county: Los Angeles County

INSTRUCTIONS TO PRIVATE PROCESS SERVER

Personally deliver one complete set of the indicated federal court papers to the registered agent or an individual authorized to accept service on its behalf. Identify the named defendant distinctly from the agent. Please do not substitute service or change the address without contacting me.

DOCUMENTS TO DELIVER TO THE AGENT: Pages 2-23 of this PDF: the issued summons (Dkt. 6, page 1), the filed complaint (Dkt. 1, 14 pages), and the initial scheduling order with magistrate-jurisdiction information (Dkt. 5, 7 pages).

SERVER-ONLY FORM: Page 24 is the unsigned Return of Service from the issued summons. Do not include that return form in the documents delivered to the agent. Complete it only after service, specifying the recipient’s name and capacity, actual date/time/place, and the server’s signature.

Return: Send the completed, signed Return of Service to me by email as soon as service is completed; provide the original if required for filing.

REQUESTED SERVICE DEADLINE: OCTOBER 30, 2026. Complete personal service on or before this date and promptly return the proof. **Requester:** Brendan Ngwa Nforbi; 1455 Cat Tail Drive; Stockton, CA 95204; (209) 801-4442; bnn.cdl@gmail.com.

UNITED STATES DISTRICT COURT

EASTERN DISTRICT OF CALIFORNIA

Brendan Ngwa Nforbi,

vs.

ATT Mobility Services LLC,

CASE NO: 2:26−CV−03314−DJC−AC

SUMMONS IN A CIVIL CASE

TO: *(Defendant's Name and Address)*

ATT Mobility Services LLC

YOU ARE HEREBY SUMMONED.

A lawsuit has been filed against you. Within 21 days after service of this summons on you (not counting the day you received it) — or 60 days if you are the United States or a United States agency, or an officer or employee of the United States described in Fed. R. Civ. P. 12 (a)(2) or (3) — you must serve on the plaintiff at the address below an answer to the attached complaint or a motion under Rule 12 of the Federal Rules of Civil Procedure and file the answer or motion with the Clerk of Court.

Brendan Ngwa Nforbi
1455 Cat Tail Drive
Stockton, CA 95204

If you fail to respond, judgment by default will be entered against you for the relief demanded in the complaint.

KEITH HOLLAND
CLERK

/s/ A. Woodson
(By) DEPUTY CLERK

ISSUED ON 2026−10−14 14:28:28
CLERK, USDC EDCA

BRENDAN NGWA NFORBI
Plaintiff, In Propria Persona
1455 Cat Tail Drive
Stockton, CA 95204
Telephone: (209) 801-4442
E-mail: bnn.cdl@gmail.com

FILED
SEP 18 2026
CLERK, U.S. DISTRICT COURT
EASTERN DISTRICT OF CALIFORNIA
BY _____ DEPUTY CLERK

UNITED STATES DISTRICT COURT

EASTERN DISTRICT OF CALIFORNIA

BRENDAN NGWA NFORBI,

Plaintiff,

v.

AT&T MOBILITY SERVICES LLC, a Delaware limited liability company,

Defendant.

Case No. 2:26-cv-3314-DJC-AC (CPS)

COMPLAINT FOR DAMAGES

(1) FCRA, 15 U.S.C. § 1681b(b)(3)(A);
(2) ICRAA, Civ. Code §§ 1786.40, 1786.50;
(3) Penal Code § 290.46(j)

[Jury Trial Demanded]

Plaintiff BRENDAN NGWA NFORBI, appearing in propria persona, alleges:

I. NATURE OF THE ACTION

1. On May 28, 2026, AT&T issued Plaintiff an official written offer for a Retail Sales Consultant position at 2439 West Kettleman Lane, Lodi, California.

2. The offer specified $24.95 per hour, targeted variable compensation of $13,700 annually prorated for part-time hours, reporting manager Orville R. Bell, and a tentative June 15, 2026 start date.

3. Plaintiff accepted through Workday and began onboarding.

4. At approximately 10:19 a.m., First Advantage sent Plaintiff the employment-screening task AT&T had ordered for "AT&T Non Management," account 132156.

5. At approximately 12:23 p.m., AT&T recruiter Richard Patterson texted that the manager no longer wanted to proceed with Plaintiff's offer because Plaintiff did not pass Spanish and a Spanish speaker was needed.

6. Plaintiff had not received a copy of any consumer report or Summary of Rights before the 12:23 p.m. rescission.

7. Plaintiff alleges on information and belief that, before the rescission, First Advantage furnished AT&T a consumer-report result concerning Plaintiff and that AT&T based its decision in whole or in part on that report.

8. Plaintiff further alleges on information and belief that the report contained information disclosed pursuant to California Penal Code § 290.46, including Plaintiff's California registry information, and that AT&T used that information for an employment purpose.

9. Plaintiff does not allege that the Spanish explanation was necessarily false. The timing and sequence create competing explanations that can be resolved through AT&T's, LTI's, and First Advantage's records.

II. JURISDICTION AND VENUE

10. This Court has federal-question jurisdiction under 28 U.S.C. § 1331 because Count One arises under the Fair Credit Reporting Act.

11. This Court has supplemental jurisdiction under 28 U.S.C. § 1367(a) over Counts Two and Three because they arise from the same offer, screening, and employment decision.

12. Plaintiff does not presently invoke diversity jurisdiction. AT&T Mobility Services LLC is a limited liability company, and the citizenship of every member has not been established.

13. Plaintiff has Article III standing. He alleges a concrete economic injury—the loss of the accepted Lodi employment and its documented $24.95 hourly compensation—fairly traceable to the report-based employment action alleged and redressable by damages.

14. Venue is proper under 28 U.S.C. § 1391(b)(2) because a substantial part of the events occurred in Lodi, San Joaquin County, California.

15. Under Eastern District of California Local Rule 120(d), San Joaquin County civil actions are commenced on the Sacramento side of the District.

III. PARTIES

16. Plaintiff Brendan Ngwa Nforbi is a natural person and California resident.

17. Defendant AT&T Mobility Services LLC is alleged to be the legal entity that issued or controlled requisition R-106742 and the associated employment screening and decision.

18. Plaintiff will confirm the exact employing/report-user entity from AT&T and First Advantage records before filing. He does not name AT&T Inc. merely because it is the parent brand.

19. First Advantage Background Services Corp. is the confirmed screening vendor in this transaction but is not presently named as a defendant absent an independent CRA violation.

20. Richard Patterson and Orville R. Bell are percipient witnesses, not presently named defendants.

IV. APPLICATION, SPANISH ASSESSMENT, AND OFFER

21. On May 16, 2026, Plaintiff applied for requisition R-106742, Bilingual Spanish Retail Sales Consultant at the Lodi location.

22. Plaintiff also applied for R-107776, a non-bilingual Retail Sales Consultant position at Stockton Pacific.

23. Both applications advanced through AT&T's interview process.

24. On May 22, Language Testing International advised Plaintiff that AT&T had requested an ACTFL OPIc Spanish-speaking assessment.

25. The assessment window expired May 25, 2026, and LTI stated that the rating would be supplied to AT&T's recruiting system.

26. Plaintiff's present file does not contain the score, recording, passing threshold,

timestamp when AT&T received the score, or internal decision notes.

27. On May 28 at approximately 10:13 a.m., Workday sent Plaintiff a "Welcome to the team" message and official offer for R-106742.

28. The written offer identified the role, manager, Lodi location, $24.95 hourly rate, targeted variable compensation, and tentative June 15 start.

29. The offer listed standardized background checks among its contingencies.

30. The two-page offer in Plaintiff's present file did not identify passage of the earlier Spanish assessment as an outstanding post-offer contingency.

31. Plaintiff accepted the offer through Workday.

32. At approximately 10:15 through 10:17 a.m., Workday issued onboarding tasks concerning documents, government identifiers, and personal information.

V. FIRST ADVANTAGE SCREENING AND RESCISSION

33. At approximately 10:19 a.m., First Advantage sent Plaintiff an employment-screening task on behalf of "AT&T Non Management," account 132156.

34. This transaction-specific communication confirms AT&T had initiated a First Advantage employment-screening workflow.

35. The invitation does not, by itself, establish when First Advantage completed a report, when any result became available, what the report contained, or when AT&T accessed

it.

36. At approximately 12:23 p.m., Patterson texted Plaintiff that the manager no longer wanted to proceed with "your offer" because Plaintiff did not pass Spanish and a Spanish speaker was needed.

37. That text is AT&T's contemporaneous stated reason. Plaintiff does not concede that the assessment was actually failed, that the result independently required rejection, or that it was the sole cause of the reversal.

38. Before 12:23 p.m., AT&T did not provide Plaintiff a copy of a consumer report or written Summary of Rights.

39. At the adverse action, AT&T did not advise Plaintiff that an investigative consumer report had been obtained and did not provide First Advantage's name and address as an adverse-action notice under Civil Code § 1786.40.

VI. FACTUAL BASIS FOR REPORT RECEIPT AND USE

40. Plaintiff alleges on information and belief that First Advantage furnished AT&T a consumer-report result concerning Plaintiff before the 12:23 p.m. rescission and that AT&T based the rescission in whole or in part on that report.

41. The factual basis includes the formal offer and acceptance; immediate onboarding; AT&T's initiation of a First Advantage screening at 10:19 a.m.; the reversal approximately two hours later; the offer's express background-check contingency; and the absence of the required pre-adverse report and Summary of Rights.

42. Whether a report or partial report actually existed and was furnished before 12:23 p.m. is recorded in First Advantage's order-generation, component-completion, transmission, and AT&T-access logs.

43. Plaintiff does not plead the mere screening invitation itself as a "consumer report" or as an adverse result.

VII. FACTUAL BASIS FOR REGISTRY SOURCE AND USE

44. At the time of the AT&T screening, Plaintiff was publicly listed on California's Megan's Law internet website.

45. On information and belief, the same CRA, screening this same consumer in the same period, returned California-registry source fields. Plaintiff does not allege that any other employer's report is AT&T's report, and he does not attach or describe those reports as if they were.

46. On information and belief, the AT&T-specific report contained information concerning Plaintiff disclosed pursuant to Penal Code § 290.46.

47. On information and belief, AT&T received, accessed, considered, and used that information for a purpose relating to employment.

48. Plaintiff does not possess AT&T's transaction-specific report and does not allege its source-field wording as known fact. The source wording, component status, adjudication code, transmission time, access logs, and AT&T reason codes are within AT&T's and First Advantage's systems.

VIII. THE SPANISH EXPLANATION DOES NOT ELIMINATE THE PLEADED REPORT THEORY

49. Plaintiff acknowledges the Spanish explanation and does not ask the Court to assume it was pretext merely because screening also occurred.

50. The following facts remain unresolved: the actual LTI score, the passing standard, when AT&T received the score, whether the score was known before the 10:13 offer, whether failure automatically required disqualification, whether First Advantage furnished a report before 12:23, and every reason actually considered by the decisionmaker.

51. The FCRA does not require a consumer report to be the sole reason for adverse action; § 1681b(b)(3)(A) applies when the action is based in whole or in part on the report.

52. If AT&T proves that the Spanish result independently and inevitably disqualified Plaintiff before any report result was furnished or used, that evidence may defeat causation. The present complaint does not conceal that defense.

IX. SOURCE-SPECIFIC § 290.46 DEFENSES

53. Plaintiff does not allege that AT&T was barred from considering lawfully and independently obtained conviction information.

54. The § 290.46 claim is based on alleged use of information disclosed pursuant to § 290.46 itself.

55. If the AT&T-specific report is properly considered and contradicts Plaintiff's information-and-belief source allegation, the claim must conform to that document.

X. COUNT ONE

Fair Credit Reporting Act — 15 U.S.C. § 1681b(b)(3)(A)

56. Plaintiff realleges paragraphs 1 through 55.

57. Plaintiff was a consumer, AT&T procured or caused a consumer report to be procured for employment purposes, and AT&T was a person using the report within the meaning of the FCRA.

58. Before taking adverse action based in whole or in part on an employment consumer report, § 1681b(b)(3)(A) requires the person intending to take the action to provide the consumer a copy of the report and a written description of FCRA rights.

59. On information and belief, AT&T's rescission was based in whole or in part on a consumer report furnished by First Advantage.

60. AT&T did not provide Plaintiff a copy of that report or the written Summary of Rights before the 12:23 p.m. adverse action.

61. AT&T thereby violated § 1681b(b)(3)(A).

62. The count is timely without delayed discovery because the alleged violation occurred May 28, 2026.

63. AT&T's noncompliance was negligent and, on proof, willful. AT&T's own First Advantage workflow referenced FCRA disclosure and authorization immediately before the

alleged adverse action. Acting without first providing the report copy is reckless disregard if that pre-adverse copy was the policy on the form. Willfulness is pleaded as a damages theory under 15 U.S.C. § 1681n, not as a separate count.

64. Plaintiff seeks relief authorized by 15 U.S.C. §§ 1681n and 1681o according to proof.

XI. COUNT TWO

California Investigative Consumer Reporting Agencies Act

Civil Code §§ 1786.40, 1786.50

65. Plaintiff realleges paragraphs 1 through 55.

66. On information and belief, the First Advantage employment background report was an investigative consumer report under ICRAA.

67. Civil Code § 1786.40 requires the user, when employment is denied under circumstances in which an investigative consumer report was obtained, to advise the consumer and supply the name and address of the investigative consumer reporting agency.

68. On information and belief, AT&T denied the employment under circumstances in which it had obtained the First Advantage investigative consumer report.

69. AT&T did not provide the § 1786.40 advice at the time of the rescission.

70. This alleged omission is distinct from Count One's federal pre-adverse omission.

71. The count is timely without delayed discovery because the alleged conduct occurred May 28, 2026.

72. Plaintiff seeks the remedies authorized by Civil Code § 1786.50 according to proof.

XII. COUNT THREE

Unauthorized Employment Use of Information Disclosed Pursuant to Penal Code § 290.46

Penal Code § 290.46(j)(2)(E), (j)(4)(A)

73. Plaintiff realleges paragraphs 1 through 55.

74. Plaintiff is a person as to whom information is disclosed through California's Megan's Law internet website.

75. Section 290.46(j)(2)(E) prohibits use of information disclosed pursuant to § 290.46 for purposes relating to employment except where statutorily authorized.

76. On information and belief, First Advantage furnished AT&T information concerning Plaintiff disclosed pursuant to § 290.46.

77. On information and belief, AT&T received, accessed, considered, and used that information for an employment purpose.

78. Plaintiff alleges the information was a substantial factor in rescinding the accepted Lodi offer.

79. Plaintiff is unaware of another law authorizing use of § 290.46-disclosed information for this retail-sales position.

80. The alleged use occurred May 28, 2026. A September 2026 filing is timely under either a potentially applicable one-year penalty characterization or a three-year statutory-liability characterization. Plaintiff therefore need not ask the Court to resolve that characterization at the pleading stage.

81. AT&T thereby violated Penal Code § 290.46(j)(2)(E).

82. Plaintiff seeks the remedies authorized by § 290.46(j)(4)(A), without duplicative recovery.

83. Plaintiff does not presently seek preventive relief under § 290.46(j)(4)(B).

XIII. DAMAGES

84. Plaintiff lost an accepted position offered at $24.95 per hour and lost the opportunity to earn targeted variable compensation according to the offer and proof.

85. The offer does not state guaranteed weekly hours. Plaintiff does not invent them.

86. Plaintiff seeks only damages and statutory relief legally recoverable under the three opening causes of action and will avoid double recovery.

XIV. PRAYER FOR RELIEF

WHEREFORE, Plaintiff requests:

A. Actual and compensatory damages according to proof;

B. Relief authorized by 15 U.S.C. §§ 1681n and 1681o;

C. Relief authorized by Civil Code § 1786.50;

D. Relief authorized by Penal Code § 290.46(j)(4)(A);

E. Taxable costs and attorney's fees only where authorized, including if counsel later appears;

F. Prejudgment and postjudgment interest as allowed by law; and

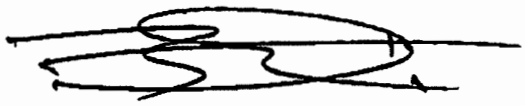
G. Such other nonduplicative relief as the Court deems proper.

XV. JURY DEMAND

Plaintiff demands trial by jury on all issues so triable.

Dated: September 16, 2026

Respectfully submitted,



BRENDAN NGWA NFORBI

Plaintiff, In Propria Persona

IN THE UNITED STATES DISTRICT COURT

FOR THE EASTERN DISTRICT OF CALIFORNIA

BRENDAN NGWA NFORBI ,

Plaintiff(s),

v.

ATT MOBILITY SERVICES LLC ,

Defendant(s).

/

NO. 2:26−CV−03314−DJC−AC PS

INITIAL SCHEDULING ORDER
PRO SE CASES

This action has been assigned to Magistrate Judge Allison Claire. Because at least one party proceeds without the assistance of counsel, the Local Rules dictate the Magistrate Judge will (1) resolve all non-dispositive matters, and (2) conduct all hearings and issue findings and recommendations on any dispositive matters. See Local Rule 302(c)(21).

Should the parties wish to consent to the jurisdiction of the Magistrate Judge for all purposes, including for the entry of final judgment, they may do so using the court's "Consent to Assignment or Request for Reassignment" form. See 28 U.S.C. § 636(c). There is no obligation to consent, and under Federal Rule of Civil Procedure 73(b)(1), the judges will not be notified of a party's choice unless all parties have consented.

Because a consent designation assists the court in determining how the action will be administratively processed, the parties are instructed to make their election and notify the Clerk of the Court as soon as practicable.

Pursuant to Federal Rule of Civil Procedure 16 and Local Rule 240, IT IS HEREBY ORDERED:

1. The Clerk of the Court shall send plaintiff(s) a copy of this order; a summons; and a copy of the "Consent to Assignment or Request for Reassignment" information.[1]
2. Plaintiff shall complete service of process on all defendants named in the complaint within 90 days from the date of this order. Plaintiff shall provide each defendant with a copy of (i) the summons; (ii) the complaint; (iii) this order; and (iv) the Consent to Assignment or Request for Reassignment information.
    a. Within 10 days after service of process on a given defendant, plaintiff(s) shall file with the Clerk a certificate stating that the defendant was served under Rule 4.
    b. The court cautions plaintiff(s) that this case may be dismissed if service of process is not accomplished within 90 days. See Federal Rule of Civil Procedure 4(m).
3. The parties shall file their completed Consent to Assignment or Request for Reassignment form within 30 days of service of process (or 60 days if the U.S. is a party to this action).

If a defendant responds to the complaint by motion:

4. Defendant(s) shall notice the motion for a hearing, as outlined in Local Rule 230(b). The court's available hearing dates can be found on chambers' website, at: https://www.caed.uscourts.gov/caednew/index.cfm/judges/all-judges/5046/ .
5. Within 14 days of the filing of the motion, plaintiff(s) shall file opposition (or non-opposition). See Local Rule 230(c). The court advises plaintiff(s) that, within 21 days of service of a defendant's motion under Rules 12(b), (e), or (f), plaintiff may amend the complaint once as a matter of right. See Federal Rule of Civil Procedure 15(a)(1).
6. The court cautions plaintiff(s) that a failure to timely respond to the motion may result in the loss of a right to be heard at oral arguments, and may be taken as consent to granting of the motion. See Local Rule 230(c).

---

[1]If this action was originally filed in state court and removed to this court, the Clerk need not send a summons and complaint to plaintiff. Instead, the removing party shall (a) immediately serve upon each of the other parties, and upon all parties subsequently joined, a copy of this order and copy of the Consent to Assignment or Request for Reassignment form, and (b) file a notice that these parties have been served.

If a defendant files an answer to the complaint:

7. Within 30 days after an answer is filed, the parties shall discuss, in person or by telephone, as required by Federal Rule of Civil Procedure 26.
8. Within 7 days after the parties' Rule 26 discussion, the parties shall file a joint status report with the court for the entry of a pretrial scheduling order. This report shall address the relevant portions of Local Rule 240(a), and shall be filed as a joint status report and request for hearing before the Magistrate Judge.

Miscellaneous Orders

9. The parties are reminded of their continuing duty to notify chambers immediately of any settlement or other disposition. See Local Rule 160.
10. The parties are directed to the undersigned's Standing Orders, located on the court's web page at www.caed.uscourts.gov. The parties should take note of the page limits assigned to civil motions and discovery joint statements. The parties are responsible for knowing and complying with the court's standing orders.
11. While the court can liberally construe filings by parties who are not represented by counsel, unrepresented parties are still required to comply with the Federal Rules, the court's Local Rules, and all orders of the court. Under Local Rule 110, a failure to do so "may be grounds for imposition of any and all sanctions authorized by statute or Rule or within the inherent power of the Court," including monetary sanctions, the striking of a pleading or motion, or dismissal of the case.

DATE: October 14, 2026

ALLISON CLAIRE
UNITED STATES MAGISTRATE JUDGE

by: /s/ A. Woodson
Deputy Clerk

UNITED STATES DISTRICT COURT

EASTERN DISTRICT OF CALIFORNIA
501 I STREET, SUITE 15-220
SACRAMENTO, CA 95814

Chambers of
TROY L. NUNLEY
Chief United States District Judge

Magistrate Judge Consent in Civil Cases: Know Your Rights!

Delay, congestion, uncertainty, and expense are concerns often expressed by civil litigants. These concerns have reached a crisis level in the Eastern District of California.

Despite the population of our District nearly doubling since 1979 and a corresponding tremendous increase in case filings, for the past 40 years our court has only 6 authorized District Judgeship positions. The U.S. Judicial Conference, the policy-making arm of the federal courts, has recommended for decades that Congress authorize between 5 and 11 new judgeships for this court. While the court is doing what it can to ensure Congress is fully informed regarding our current proposed allocation of 5 new judgeships, we cannot at this point say there is a realistic hope of new District Judgeships in the foreseeable future.

As a result, the Eastern District has been significantly congested for many years, consistently carrying average weighted caseloads equal or close to twice the national average for federal trial courts. Given our current more dire circumstances, civil litigants are having to vie for less and less District Judge time and attention. Civil litigants therefore may wish to consider consenting to Magistrate Judge jurisdiction, given that the court has a full complement of experienced Magistrate Judges available to preside to the full extent allowed by law.

The Magistrate Judge consent process can help bring about the "just, speedy, and inexpensive determination" of federal cases. Fed. R. Civ. P. 1. Although their title has changed periodically, Magistrate Judges, as they currently are known, have had a role in the federal courts since passage of the Judiciary Act of 1789. Over time, Congress has expanded and enhanced the position in the interests of maximizing judicial efficiency. Specifically, Magistrate Judges are authorized "to conduct any or all proceedings in a jury or non-jury civil matter and order the entry of judgment in the case" with the consent of the parties. 28 U.S.C. § 636(c). Consent can maximize access to the courts and ease court congestion through effective use of judicial resources. It can provide numerous benefits to litigants including the prospect of an early and firm trial date, when District Judges may not be available to try a civil case given the need to prioritize felony criminal cases.

In civil cases, the assigned Magistrate Judge already is responsible for resolving discovery disputes, deciding other non-dispositive motions and in some instances handling pre-trial proceedings; as a result that judge may be intimately familiar with the case history. Consenting in any civil case allows the Magistrate Judge to decide dispositive motions and preside over trial, and so can avoid the uncertainty parties may face while waiting for the District Judge to identify time on his or her calendar for trial. Just as with a judgment issued by a District Judge, a judgment issued by a Magistrate Judge to whom the parties in a civil case have consented is appealable directly to the Ninth Circuit Court of Appeals.

As their professional biographies posted on our court's website show, our Magistrate Judges are well-qualified to preside over the cases assigned them. They are experienced, high-caliber judges

with diverse experiences in civil and criminal litigation who have been selected on the merits, taking into account their education, experience, knowledge of the court system, personal attributes and other criteria. Our Magistrate Judges are well-qualified to preside over the civil cases brought in our court. To consent to magistrate judge jurisdiction, a party simply signs and files a consent form. The form is available on the court's website, at this link:

http://www.caed.uscourts.gov/caednew/index.cfm/forms/civil/.

Parties may consent or withhold consent without any adverse consequences. Once all parties to a case consent, then the assigned District Judge is notified and considers whether to approve the consent. Once the District Judge accepts, then the Magistrate Judge determines whether to accept consent jurisdiction, taking the opportunity to consider any conflicts or bases for recusal.

All litigants before the federal courts deserve justice delivered in a fair, prompt, and efficient manner. Our Magistrate Judges play a critical role in providing essential access to justice, particularly in our overburdened court. Consenting to Magistrate Judge jurisdiction in civil cases may represent one of the best ways to secure "just, speedy, and inexpensive determination" of your case, which is why we want to be sure you are fully aware of your right and ability to consent, and the means of doing so.



Troy L. Nunley
Chief United States District Judge

NOTICE OF AVAILABILITY OF A MAGISTRATE JUDGE

TO EXERCISE JURISDICTION AND APPEAL INSTRUCTIONS

You are hereby notified in accordance with 28 U.S.C §636(c), F.R.Civ.P.73 and Local Rule 305, the United States Magistrate Judges sitting in Sacramento and Fresno are available to exercise the court's case-dispositive jurisdiction and to conduct any or all case-dispositive proceedings in this action, including motions to dismiss, motions for summary judgment, a jury or non jury trial, and entry of a final judgment. Exercise of this jurisdiction by a Magistrate Judge is however, permitted only if all parties voluntarily consent. You may, without adverse substantive consequences, withhold your consent, but this will prevent the court's case-dispositive jurisdiction from being exercised by a Magistrate Judge.

Any appeal from a judgment entered by a Magistrate Judge is taken directly to the United States Court of Appeals for the Ninth Circuit or, where appropriate, for the Federal Circuit in the same manner as an appeal from any other judgment of a District Court.

Whether or not the parties consent pursuant to 28 U.S.C. § 636(c), the assigned Magistrate Judge will hear all motions except those case-dispositive motions set forth in 28 U.S.C. § 636(b)(1)(A).

A copy of the Form for "Consent to / Decline of Jurisdiction of United States Magistrate Judge" is attached hereto for pro per use and attorney information. This form is available in fillable .pdf format on the court's web site at www.caed.uscourts.gov for all attorney ECF filers. This form may be filed through CM/ECF or by pro se litigants at the appropriate Clerk's Office location.

Office of the Clerk
501 I Street, Room 4−200
Sacramento, CA 95814

Office of the Clerk
2500 Tulare Street, Suite 1501
Fresno, CA 93721

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF CALIFORNIA

BRENDAN NGWA NFORBI ,
Plaintiff(s) / Petitioner(s),

vs.

ATT MOBILITY SERVICES LLC ,
Defendant(s) / Respondent(s).

CASE NO: **2:26−CV−03314−DJC−AC**

CONSENT / DECLINE OF U.S. MAGISTRATE JUDGE JURISDICTION

IMPORTANT

IF YOU CHOOSE TO CONSENT OR DECLINE TO CONSENT TO JURISDICTION OF A UNITED STATES MAGISTRATE JUDGE, CHECK AND SIGN THE APPROPRIATE SECTION OF THIS FORM AND RETURN IT TO THE CLERK'S OFFICE.

☐ **CONSENT TO JURISDICTION OF UNITED STATES MAGISTRATE JUDGE**

In accordance with the provisions of Title 28, U.S.C Sec. 636(c)(1), the undersigned hereby voluntarily consents to have a United States Magistrate Judge conduct all further proceedings in this case, including trial and entry of final judgment, with direct review by the Ninth Circuit Court of Appeals, in the event an appeal is filed.

Date: _____ Signature: _____

Print Name: _____

( ) Plaintiff / Petitioner ( ) Defendant / Respondent

Counsel for_____*

☐ **DECLINE OF JURISDICTION OF UNITED STATES MAGISTRATE JUDGE**

Pursuant to Title 28, U.S.C. Sec 636(c)(2), the undersigned acknowledges the availability of a United States Magistrate Judge but hereby declines to consent.

Date: _____ Signature: _____

Print Name: _____

( ) Plaintiff / Petitioner ( ) Defendant / Respondent

Counsel for_____*

If representing more than one party, counsel must indicate the name of each party responding.

RETURN OF SERVICE

Case No: 2:26−CV−03314−DJC−AC

NAME OF DEFENDANT SERVED	DATE OF SERVICE
NAME OF SERVER *(PRINT)*	TITLE

Check one box below to indicate appropriate method of service:

☐ Served personally upon the defendant. Place where served: _____
_____

☐ Left copies thereof at the defendant's dwelling house or usual place of abode with a person of suitable age and discretion then residing therein.

Name of person with whom the summons and complaint were left: _____

☐ Returned unexecuted: _____
_____
_____

☐ Other (specify): _____
_____
_____

STATEMENT OF SERVICE FEES

TRAVEL	SERVICES	TOTAL

DECLARATION OF SERVER

I declare under penalty of perjury under the laws of the United States of America that the foregoing information contained in the Return of Service and Statement of Service Fees is true and correct.

Executed on _____
Date

_____
Signature of Server

_____

_____
Address of Server